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First, common-law courts historically granted the writ to discharge deserting foreign sailors found and imprisoned in the United States. In *Commonwealth v. Holloway*, 1 Serg. & Rawle 392 (1815), the Pennsylvania Supreme Court granted a writ of habeas corpus to a Danish sailor who had deserted his vessel in violation of both an employment contract and Danish law. The court explained that the desertion did not violate any domestic law or treaty, and thus imprisonment was inappropriate. *Id.*, at 396 (opinion of Tilghman, C. J.). By ordering an unconditional discharge and declining to return the noncitizen sailor to the custody of any foreign power, the court used the writ to order a release that authorized a noncitizen to remain in the United States, a country “other than his own.” *Ante*, at 120. The same was true in similar cases that even the Court cites. See *ante*, at 124 (citing *Case of the Deserters from the British Frigate L’Africaine*, 3 Am. L. J. & Misc. Repertory 132 (Md. 1810) (reporting on a decision discharging deserters); *Case of Hippolyte Dumas*, 2 Am. L. J. & Misc. Repertory 86 (Pa. 1809) (same)).

Curiously, the Court does not contest that the writs in these cases were used to secure the liberty of foreign sailors, and consequently their right to enter the country.³ Rather, it remarks that judges at the time “chafed at having to order even release,” *ante*, at 124, which some saw as inconsistent with principles of comity, *Holloway*, 1 Serg. & Rawle, at 394. But reluctance is not inability. That those judges followed the law’s dictates despite their distaste for the result should give today’s Court pause.

The Court seizes on one case where a court ordered a deserting sailor to be returned to his foreign vessel-master. See *ante*, at 119, 124 (citing *Ex parte D’Olivera*, 7 F. Cas.

³ Indeed, the Court highlights a striking similarity to the present asylum challenge by observing that the foreign-deserter cases show the “use of habeas to secure release from custody when not in compliance with . . . statute[s] and relevant treaties.” *Ante*, at 125.

853, 854 (No. 3,967) (CC Mass. 1813)). But it reads too much into this one decision. In *D'Olivera*, the court held that deserting sailors were unlawfully confined and granted a writ of habeas corpus, but directed that they be discharged to their vessel-master out of "a desire not to encourage desertion among foreign seamen." *Id.*, at 854. As illustrated by other deserter cases *supra*, the kind of results-oriented decisionmaking in *D'Olivera* does not seem to be the norm. The Court's proclamation about how the scope of common-law habeas cannot hinge on a "single case" should have equal force here. *Ante*, at 122, n. 18.

Next, courts routinely granted the writ to release wrongfully detained noncitizens into Territories other than the detainees' "own." Many involved the release of fugitive or former slaves outside their home State. In these cases, courts decided legal questions as to the status of these petitioners. In *Arabas v. Ivers*, 1 Root 92 (Conn. Super. Ct. 1784), for example, a Connecticut court determined that a former slave from New York held in local jail on his alleged master's instructions had, in fact, been freed through his service in the Continental Army. The court ordered him discharged "upon the ground that he was a freeman, absolutely manumitted from his master by enlisting and serving in the army." *Id.*, at 93. See also *In re Belt*, 7 N. Y. Leg. Obs. 80 (1848) (granting habeas to discharge an imprisoned fugitive slave whose owner did not timely apply for his return to Maryland); *In re Ralph*, 1 Morris 1 (Iowa 1839) (discharging person from custody on the grounds that he was not a fugitive slave subject to return to Missouri when he had been allowed to travel to the Iowa Territory by his former master); *Commonwealth v. Holloway*, 2 Serg. & Rawle 305 (Pa. 1816) (holding on habeas corpus that a child born in a free State to a slave was free); *In re Richardson's Case*, 20 F. Cas. 703 (No. 11,778) (CC DC 1837) (ordering prisoner to be discharged in the District of Columbia because warrant was insufficient to establish that he was a runaway slave from Maryland); *Commonwealth v. Griffith*, 19 Mass. 11 (1823)

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(contemplating that the status of a freeman seized in Massachusetts as an alleged fugitive from Virginia could be determined on habeas corpus).

The weight of historical evidence demonstrates that common-law courts at and near the founding granted habeas to noncitizen detainees to enter Territories not considered their own, and thus ordered the kind of release that the Court claims falls outside the purview of the common-law writ.

The Court argues that none of this evidence is persuasive because the writ could not be used to compel authorization to enter the United States. *Ante*, at 125. But that analogy is inapt. Perhaps if respondent here sought to use the writ to grant naturalization, the comparison would be closer. But respondent sought only the proper interpretation and application of asylum law (which statutorily permits him to remain if he shows a credible fear of persecution), or in the alternative, release pursuant to the writ (despite being cognizant that he could be denied asylum or rearrested upon release if he were found within the country without legal authorization). But that consequence does not deprive respondent of the ability to invoke the writ in the first instance. See, e. g., *Lewis v. Fullerton*, 22 Va. 15 (1821) (affirming that a judgment on habeas corpus in favor of a slave was not conclusive of her rights but merely permitted release from custody on the record before the court and did not prohibit recapture by a master); *Ralph*, 1 Morris, at 1 (noting that an adjudication that petitioner was not a fugitive only exempted him from fugitive-slave laws but did not prohibit master from entering Territory to reclaim him on his own accord).

For these reasons, the Court is wrong to dispute that common-law habeas practice encompassed the kind of release respondent seeks here.

The Court also appears to contend that respondent sought merely additional procedures in his habeas adjudication and that this kind of relief does not fall within the traditional

scope of the writ. That reflects a misunderstanding of the writ. Habeas courts regularly afforded the state additional opportunities to show that a detention was lawful before ordering what the Court now considers a release outright.

The common-law writ of *habeas corpus ad subjiciendum* evolved into what we know and hail as the “Great Writ.” See 3 W. Blackstone, Commentaries on the Laws of England 131 (1768). That writ, at bottom, allowed a court to elicit the cause for an individual’s imprisonment and to ensure that he be released, granted bail, or promptly tried. See Oaks, Habeas Corpus in the States—1776–1865, 32 U. Chi. L. Rev. 243, 244 (1965). From its origins, the writ did not require immediate release, but contained procedures that would allow the state to proceed against a detainee. Under the English Habeas Corpus Act of 1679, jailers were ordered to make a “return” to a writ within a designated time period and certify the true causes of imprisonment. *Id.*, at 252–253. Justices of the King’s Bench obtained returns that provided full legal accounts justifying detention. Halliday & White, The Suspension Clause: English Text, Imperial Contexts, and American Implications, 94 Va. L. Rev. 575, 599–600 (2008) (Halliday & White). They also examined and were guided by depositions upon which a detention was founded to determine whether to admit a petitioner to bail. Oaks, 32 U. Chi. L. Rev., at 258. Indeed, the King’s Bench routinely considered facts not asserted in the return to assist scrutiny of detentions. Halliday & White 610; see also *id.*, at 611 (documenting instances where the court would consider affidavits of testimony beyond what was included in the return).

Moreover, early practice showed that common-law habeas courts routinely held proceedings to determine whether detainees should be discharged immediately or whether the state could subject them to further proceedings, including trial in compliance with proper procedures. See *Ex parte Bollman*, 4 Cranch 75, 125 (1807) (taking testimony in conjunction with an “inquiry” to determine whether “the ac-

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cused shall be discharged or held to trial”). In *Ex parte Kaine*, 14 F. Cas. 78 (No. 7,597) (CC SDNY 1853), for example, a federal court analyzed whether a petitioner, who had been found guilty of an offense by a commissioner, was subject to extradition. The court passed on questions of law concerning whether the commissioner had the power to adjudicate petitioner’s criminality. *Id.*, at 80. Ultimately, the court found that petitioner was “entitled to be discharged from imprisonment” due to defects in the proceedings before the commissioner, but entertained further evidence on whether he could nevertheless be extradited. *Id.*, at 82. Only after finding no additional evidence that would permit extradition did the court order release. *Ibid.*

Similarly, in *Coleman v. Tennessee*, 97 U. S. 509 (1879), the petitioner had been convicted of a capital offense by a state court, even though he had committed the offense while a soldier in the United States Army. *Id.*, at 510–511. This Court granted habeas on the grounds that the state-court judgment was void but, because the petitioner had also been found guilty of murder by a military court, nevertheless turned the prisoner over to the custody of the military for appropriate punishment. *Id.*, at 518–520. Not surprisingly, then, the Court has found that habeas courts may discharge detainees in a manner that would allow defects in a proceeding below to be corrected. *In re Bonner*, 151 U. S. 242, 261 (1894).

These examples confirm that outright habeas release was not always immediately awarded. But they also show that common-law courts understood that relief short of release, such as ordering officials to comply with the law and to correct underlying errors, nevertheless fell within the scope of a request for habeas corpus.⁴

⁴The Court considers irrelevant cases demonstrating that the executive was permitted to cure defects in detention because “the legality of [respondent’s] detention is not in question” here. *Ante*, at 122; see also *ante*, at 137 (acknowledging that it is “often ‘appropriate’ to allow the execu-

Despite exalting the value of pre-1789 precedent, the Court's key rationale for why respondent does not seek "release" in the so-called traditional sense rests on an inapposite, contemporary case: *Munaf v. Geren*, 553 U.S. 674 (2008).⁵ *Ante*, at 119. *Munaf*, the Court claims, shows that habeas is not available to seek an order to be brought into this country. *Ante*, at 119. But that case is in a category of its own and has no bearing on respondent's claims here. *Munaf* addressed a one-of-a-kind scenario involving the transfer of individuals between different sovereigns. There, two United States citizens in Iraq filed habeas petitions seeking to block their transfer to Iraqi authorities after being accused of committing crimes and detained by American-led coalition forces pending investigation and prosecution in Iraqi courts. 553 U.S., at 679–680, 692. The central question, this Court repeatedly stated, was "whether United States district courts may exercise their habeas jurisdiction to enjoin our Armed Forces from transferring individuals detained within another sovereign's territory to that sovereign's government for criminal prosecution." *Id.*, at 689; see also *id.*, at 704.

In concluding that habeas did not extend to the relief sought by the citizens detained in Iraq, the *Munaf* Court relied on cases involving habeas petitions filed to avoid extradition. *Id.*, at 695–696 (citing *Wilson v. Girard*, 354 U.S. 524 (1957) (*per curiam*), and *Neely v. Henkel*, 180 U.S. 109

tive to cure defects in a detention" in habeas cases (quoting *Boumediene v. Bush*, 553 U.S. 723, 779 (2008))). But as explained in Part I–A, *supra*, that is exactly what respondent questions by arguing that his detention violated governing asylum law.

⁵Oddly, the Court embraces *Munaf*—a recent decision involving detainees held outside the territorial limits of the United States who were subject to prosecution by a foreign sovereign—to support its conclusion about the availability of habeas review. Yet at the same time, it dismisses respondent's reliance on *Boumediene* outright on the grounds that the case is "not about immigration at all." *Ante*, at 136.

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(1901)). These decisions, the Court concluded, established that American courts lack habeas jurisdiction to enjoin an extradition or similar transfer to a foreign sovereign exercising a right to prosecution. 553 U.S., at 696–697. These circumstances, which today’s Court overlooks, mean that *Munaf* is more like the extradition cases that the Court deems not “pertinent.” *Ante*, at 125.⁶

In any event, respondent is not similarly situated to the petitioners in *Munaf*, who sought habeas to thwart removal from the United States in the face of a competing sovereign’s

⁶ Nor is the Court correct in dismissing common-law extradition precedents as inapposite because they show “nothing more than the use of habeas to secure release from custody.” *Ante*, at 125. Indeed, these extradition cases demonstrate that the common-law writ encompassed exactly the kind of permission to remain in a country that the Court claims falls outside its scope. *Ante*, at 117, 119. *In re Stupp*, 23 F. Cas. 296 (No. 13,563) (CC SDNY 1875), which the Court cites in passing, emphatically affirmed that habeas corpus was available to challenge detention pending extradition: “[T]he great purposes of the writ of habeas corpus can be maintained, as they must be. The court issuing the writ must inquire and adjudge whether the commissioner acquired jurisdiction . . . and had before him legal and competent evidence of facts whereon to pass judgment as to the fact of criminality, and did not arbitrarily commit the accused for surrender.” *Id.*, at 303. Although the *Stupp* court did not ultimately issue the writ, other courts have. See, e.g., *Ex parte Kaine*, 14 F. Cas. 78, 82 (No. 7,597) (CC SDNY 1853) (granting the writ to a prisoner whose detention was “in consequence of illegality in the proceedings under the [extradition] treaty”); *Pettit v. Walshe*, 194 U.S. 205, 219–220 (1904) (affirming a grant of habeas where a prisoner’s detention violated the terms of an extradition treaty with Great Britain); *In re Washburn*, 4 Johns. Ch. 106, 114 (N. Y. 1819) (granting a habeas petition of a noncitizen after a request for extradition); *People v. Goodhue*, 2 Johns. Ch. 198, 200 (N. Y. 1816) (releasing prisoner subject to possible interstate extradition). These extradition-related habeas cases show that the writ was undoubtedly used to grant release in the very direction—that is, away from a foreign country and into the United States—that the Court today derides. Indeed, the same scholar the Court cites makes the point that extradition specifically allowed courts to hear challenges to the Executive’s ability to “detain aliens for removal to another country at the request of [the] government.” Neuman, Habeas Corpus, Executive Detention, and the Removal of Aliens, 98 Colum. L. Rev. 961, 1003 (1998).

interests. Mindful that the case implicated “sensitive foreign policy issues in the context of ongoing military operations,” the *Munaf* Court observed that granting habeas relief would “interfere with Iraq’s sovereign right to punish offenses against its laws committed within its borders.” 553 U. S., at 692 (internal quotation marks omitted); see also *id.*, at 689, 694, 700. For that reason, it proceeded “‘with the circumspection appropriate when this Court is adjudicating issues inevitably entangled in the conduct of . . . international relations.’” *Id.*, at 689, 692. Here, of course, no foreign sovereign is exercising a similar claim to custody over respondent during an ongoing conflict that would trigger the comity concerns that animated *Munaf*.

C

Next, the Court casually dismisses nearly 70 years of precedent from the finality era, the most relevant historic period for examining judicial review of immigration decisions. It concludes that, in case after case, this Court exercised habeas review over legal questions arising in immigration cases akin to those at issue here, not because the Constitution required it but only because a statute permitted it. *Ante*, at 128–129. That conclusion is both wrong in its own right and repeats arguments this Court rejected a half century ago when reviewing this same body of cases.

At the turn of the 20th century, immigration to the United States was relatively unrestricted. Public sentiment, however, grew hostile toward many recent entrants, particularly migrant laborers from China. In response, Congress enacted the so-called Chinese Exclusion Act of 1882, ch. 126, 22 Stat. 58, which prohibited the entry of Chinese laborers to the United States. The Scott Act, ch. 1064, 25 Stat. 504, enacted in 1888, forbade reentry of Chinese laborers who had left after previously residing in this country. Although immigration officials routinely denied entry to arriving migrants on the basis of these laws, many of these decisions

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were overturned by federal courts on habeas review. See, e. g., *United States v. Jung Ah Lung*, 124 U. S. 621 (1888).

This did not escape Congress' attention. See Select Committee on Immigration and Naturalization, H. R. Rep. No. 4048, 51st Cong., 2d Sess., 273–275 (1891) (documenting rate of reversal of immigration exclusion orders by Federal District Court in San Francisco). Congress responded by enacting the Immigration Act of 1891, which stripped federal courts of their power to review immigration denials: “All decisions made by the inspection officers or their assistants touching the right of any alien to land, when adverse to such right, shall be final unless appeal be taken to the superintendent of immigration, whose action shall be subject to review by the Secretary of the Treasury.” Act of Mar. 3, 1891, § 8, 26 Stat. 1085. By its terms, that restriction on federal judicial power was not limited to review of some undefined subset of issues, such as questions of law or fact; it made executive immigration decisions final in all respects.

The Court, however, quickly construed the statute in *Nishimura Ekiu v. United States*, 142 U. S. 651 (1892) (*Ekiu*), to preclude only review of executive factfinding. Having so construed the statute, the Court in *Ekiu*, and in case after case following *Ekiu*, recognized the availability of habeas to review a range of legal and constitutional questions arising in immigration decisions. The crucial question here is whether the finality-era Courts adopted that construction of jurisdiction-stripping statutes because it was simply the correct interpretation of the statute's terms and nothing more or because that construction was constitutionally compelled to ensure the availability of habeas review. The better view is that *Ekiu*'s construction of the 1891 statute was constitutionally compelled.

In *Ekiu*, the Court recognized that a Japanese national was entitled to seek a writ of habeas corpus to review an exclusion decision issued almost immediately upon her arrival to the United States. As the Court notes, *ante*, at 130,

the relevant issue in that case was whether the 1891 Act, “if construed as vesting . . . exclusive authority” in the Executive to determine a noncitizen’s right to enter the United States, violated the petitioner’s constitutional “right to the writ of *habeas corpus*, which carried with it the right to a determination by the court as to the legality of her detention,” 142 U. S., at 656 (statement of the case). That is, the *Ekiu* Court confronted whether construing the 1891 Act as precluding all judicial review of immigration decisions like the exclusion order at issue would violate the constitutional guarantee to habeas.

The Court answered that question by construing the 1891 Act as precluding judicial review only of questions of fact. “An alien immigrant,” the Court first held, who is “prevented from landing [in the United States] by any [executive] officer . . . and thereby restrained of his liberty, is doubtless entitled to a writ of *habeas corpus* to ascertain whether the restraint is lawful.” *Id.*, at 660. The Court then explained that it had authority to hear the case (despite Congress’ clear elimination of judicial review) because it interpreted the 1891 Act as meaning only that an immigration official’s determination of “facts” was final and unreviewable. *Ibid.* (explaining that Congress could entrust the final determination of facts to executive officers).

After so articulating the 1891 Act’s limits on judicial review, the Court analyzed two challenges to the integrity of the proceedings, neither of which raised questions of historical fact. See *id.*, at 662–663 (considering whether immigration officer’s appointment was unconstitutional such that his actions were invalid); *id.*, at 663 (determining whether proceedings were unlawful because the officer failed to take sworn testimony or make a record of the decision).⁷ Although the Court ultimately concluded that those legal and

⁷ These claims are uncannily reminiscent of the kinds of claims respondent advances here. See Parts II–A and II–B, *supra*.

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constitutional challenges lacked merit, *id.*, at 662–664, what matters is that the Court evaluated the arguments and recognized them as possible grounds for habeas relief.

What, then, can *Ekiu* tell us? Today’s Court finds significant that the brief opinion makes no explicit mention of the Suspension Clause. *Ante*, at 132. This omission, it concludes, can only mean that the *Ekiu* Court did not think that (or had no occasion to consider whether) the Suspension Clause “imposed any limitations on the authority of Congress to restrict the issuance of writs of habeas corpus in immigration matters.” *Ante*, at 131. According to this theory, *Ekiu* concluded that the plain terms of the 1891 Act prohibited judicial review of executive factfinding alone, and nothing more can be said.

But this myopic interpretation ignores many salient facts. To start, the 1891 Act was enacted for the purpose of limiting all judicial review of immigration decisions, not just a subset of factual issues that may arise in those decisions. Further, the plain terms of the statute did not cabin the limitation on judicial review to historical facts found by an immigration officer. *Ekiu*, moreover, evaluated the Act’s constitutionality in view of the petitioner’s argument that the limitation on judicial review violated the constitutional “right to the writ of *habeas corpus*.” 142 U. S., at 656 (statement of the case). These considerations all point in one direction: Even if the *Ekiu* Court did not explicitly hold that the Suspension Clause prohibits Congress from broadly limiting all judicial review in immigration proceedings, it certainly decided the case in a manner that avoided raising this constitutional question. Indeed, faced with a jurisdiction-stripping statute, the only review left for the *Ekiu* Court was that required by the Constitution and, by extension, protected by the guarantee of habeas corpus.

The Court also maintains that *Ekiu* concluded that “the act of 1891 is constitutional” in full, not “only in part.”

Ante, at 132 (quoting *Ekiu*, 142 U. S., at 664). Yet as the Court acknowledges, it was only “after interpreting the 1891 Act” as precluding judicial review of questions of fact alone that the *Ekiu* Court deemed it constitutional. *Ante*, at 131; see also *Ekiu*, 142 U. S., at 664 (concluding that “[t]he result” of its construction is that the 1891 Act “is constitutional”). That cannot mean that *Ekiu* found the 1891 Act constitutional even to the extent that it prevented all judicial review of immigration decisions, even those brought on habeas. What it can only mean, instead, is that *Ekiu*’s construction of the 1891 Act was an answer to the constitutional question posed by the case: whether and to what extent denying judicial review under the 1891 Act would violate the constitutional “right to the writ of *habeas corpus*.” *Id.*, at 656 (statement of the case).⁸

Bolstering this interpretation is that the Court has repeatedly reached the same result when interpreting subsequent statutes purporting to strip federal courts of all jurisdiction over immigration decisions. In *Gegiow v. Uhl*, 239 U. S. 3 (1915), for example, the Court observed that *Ekiu* decided that “[t]he conclusiveness of the decisions of immigration officers under [the 1891 Act]” referred only to “conclusiveness upon matters of fact.” 239 U. S., at 9. It relied heavily on *Ekiu* to support its determination that the Immigration Act of 1907, 34 Stat. 898, which also rendered decisions of immigration officers to be “final,” § 25, *id.*, at 907, similarly only barred judicial review of questions of fact, 239 U. S., at 9. Indeed, time and again, against a backdrop of statutes purporting to bar all judicial review of executive immigration decisions, this Court has entertained habeas petitions raising

⁸The Court also claims that because *Ekiu* stated that the 1891 Act was constitutional, respondent must be wrong that *Ekiu* found the 1891 Act “unconstitutional in most of its applications (*i. e.*, to all questions other than questions of fact).” *Ante*, at 132. But the point here is not that *Ekiu* actually found the 1891 Act unconstitutional in part; it is that *Ekiu* interpreted the 1891 Act to avoid rendering it unconstitutional in part.

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a host of issues other than historic facts found by immigration authorities.⁹

To be sure, this entrenched line of cases does not directly state that habeas review of immigration decisions is constitutionally compelled. But an alternate understanding of those cases rests on an assumption that is farfetched at best: that, year after year, and in case after case, this Court simply ignored the unambiguous texts of the serial Immigration Acts limiting judicial review altogether. The Court's pattern of hearing habeas cases despite those statutes' contrary mandate reflects that the Court understood habeas review in those cases as not statutorily permitted but constitutionally compelled.

In any event, we need not speculate now about whether the *Ekiu* Court, or the Courts that followed, had the constitutional right to habeas corpus in mind when they interpreted jurisdiction-stripping statutes only to preclude review of historic facts. This Court has already identified

⁹See, e. g., *The Japanese Immigrant Case*, 189 U. S. 86 (1903) (habeas petition filed by noncitizen alleged to have entered unlawfully and apprehended four days after being let on shore); *Gonzales v. Williams*, 192 U. S. 1 (1904) (habeas petition filed by resident of Puerto Rico detained at the port, who claimed that Puerto Rican nationals are United States citizens allowed to enter the mainland as a matter of course); *United States ex rel. Turner v. Williams*, 194 U. S. 279 (1904) (habeas petition by noncitizen found within the United States 10 days after entry alleging his arrest was unconstitutional); *Chin Yow v. United States*, 208 U. S. 8 (1908) (habeas petition filed by a Chinese individual with a claim of U. S. citizenship who was detained on a steamship and prohibited from disembarking); *Yee Won v. White*, 256 U. S. 399 (1921) (habeas petition filed on behalf of noncitizen wife and child denied admission to the United States upon arrival despite claiming legal right to join a family member residing in the country); *Tod v. Waldman*, 266 U. S. 113 (1924) (habeas petition by family fleeing religious persecution in Russia denied entry on the grounds that they were likely to become a public charge); *United States ex rel. Polymeris v. Trudell*, 284 U. S. 279 (1932) (habeas petition filed by residents of Greek ancestry who left the United States and sought reentry after a lengthy trip abroad).

which view is correct. In *Heikkila v. Barber*, 345 U. S. 229 (1953), the Court explained that *Ekiu* and its progeny had, in fact, construed the finality statutes to avoid serious constitutional questions about Congress' ability to strip federal courts of their habeas power. As *Heikkila* reiterated, the key question in *Ekiu* (and in later cases analyzing finality statutes) was the extent to which the Constitution allowed Congress to make administrative decisions unreviewable. 345 U. S., at 234. And it concluded that the jurisdiction-stripping immigration statute in that case, a successor to the 1891 Act, "preclud[ed] judicial intervention in deportation cases except insofar as it was required by the Constitution." *Id.*, at 234–235.

Heikkila thus settles the matter; during the finality era, this Court either believed that the Constitution required judicial review on habeas of constitutional and legal questions arising in immigration decisions or, at the very least, thought that there was a serious question about whether the Constitution so required. Although the Court tries to minimize that conclusion as not dispositive of the question presented, *ante*, at 133, such a conclusion undoubtedly weighs against finding § 1252(e)(2) constitutional in spite of its broad prohibition on reviewing constitutional and legal questions.

The Court dismisses *Heikkila* and its explanation of the finality-era cases outright. It fixates on the fact that *Heikkila* was not itself a habeas case and instead analyzed whether judicial review of immigration orders was available under the Administrative Procedure Act (APA). *Ante*, at 136. *Heikkila*'s discussion of the APA does not detract from its affirmation that when the language of a jurisdiction-stripping statute precludes all judicial review, the only review that is left is that required by the constitutional guarantee of habeas corpus. 345 U. S., at 235.¹⁰ Most im-

¹⁰ Indeed, the Government itself embraced that position in a brief to the Court during that time. Brief for Respondent in *Martinez v. Neelly*, O. T. 1952, No. 218, p. 19 ("The clear purpose of this [finality] provision

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portantly, *Heikkila* concluded that APA review was not equivalent to that judicial review. Second, the Court also states that *Heikkila* never interpreted *Ekiu* as having found the 1891 Act “partly unconstitutional.” *Ante*, at 136. But there was no need for the *Ekiu* Court to find the 1891 Act unconstitutional in part to construe it as prohibiting only review of historic facts. Instead, as *Heikkila* explained, *Ekiu* reached its decision by exercising constitutional avoidance.

By disregarding *Heikkila*, the Court ignores principles of *stare decisis* to stir up a settled debate. Cf. *Ramos v. Louisiana*, 590 U. S. 83, 140, 150 (2020) (ALITO, J., dissenting). Perhaps its view is tinted by the fact that it doubts the Suspension Clause could limit Congress’ ability to eliminate habeas jurisdiction at all. The Court scoffs at the notion that a limitation on judicial review would have been understood as an unconstitutional suspension of habeas, noting and distinguishing the limited number of occasions that this Court has found a suspension of the writ of habeas corpus. See *ante*, at 132–133; but see *ante*, at 147, n. 4 (THOMAS, J., concurring) (noting that historically, suspensions of habeas did not necessarily mention the availability of the writ). The references to those major historic moments where this Court has identified a suspension only establish the outer bounds of Congress’ suspension powers; it says nothing about whether, and to what extent, more limited restrictions on judicial review might also be found unconstitutional.

Indeed, the Court acknowledges that some thought it an open question during the finality era whether the Suspension

was to preclude judicial review of the Attorney General’s decisions in alien deportation cases insofar as the Congress could do so under the Constitution”; *id.*, at 33 (“[T]he courts have long recognized” the finality provisions “restric[t] review of deportation orders as far as the Constitution permits”); see also *id.*, at 18 (explaining that the finality provisions “precluded judicial review of deportation orders except for the collateral review in habeas corpus which the Constitution prescribes in cases of personal detention”).

Clause imposes limits on Congress' ability to limit judicial review. See *ante*, at 135, n. 25 (quoting Justice Brewer's concurring opinion in *United States ex rel. Turner v. Williams*, 194 U. S. 279, 295 (1904), raising the question). That this question remained unsettled, see n. 1, *supra*, suffices to support the Court's conclusion in *Heikkila*: The finality-era Courts endeavored to construe jurisdiction-stripping statutes to avoid serious constitutional questions about the extent of congressional power to limit judicial review.

At bottom, the better view of the finality-era cases is that they understood the habeas right they sustained to be, or at least likely to be, constitutionally compelled. Certainly the cases do not establish the Court's simplistic view to the contrary: That the finality-era Court entertained habeas petitions only because no statute limited its ability to do so, and no Constitutional provision required otherwise. That reading of precedent disregards significant indications that this Court persistently construed immigration statutes stripping courts of judicial review to avoid depriving noncitizens of constitutional habeas guarantees. Ignoring how past courts wrestled with this issue may make it easier for the Court to announce that there is no unconstitutional suspension today. But by sweeping aside most of our immigration history in service of its conclusion, the Court reopens a question that this Court put to rest decades ago, and now decides it differently. The cost of doing so is enormous. The Court, on its own volition, limits a constitutional protection so respected by our Founding Fathers that they forbade its suspension except in the direst of circumstances.

D

Not only does the Court cast to one side our finality-era jurisprudence, it skims over recent habeas precedent. Perhaps that is because these cases undermine today's decision. Indeed, both *INS v. St. Cyr*, 533 U. S. 289 (2001), and *Boumediene v. Bush*, 553 U. S. 723 (2008), instruct that eliminating

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judicial review of legal and constitutional questions associated with executive detention, like the expedited removal statute at issue here does, is unconstitutional.

The Court acknowledges *St. Cyr*'s holding but does not heed it. *St. Cyr* concluded that "[b]ecause of [the Suspension] Clause, some 'judicial intervention in deportation cases' is unquestionably 'required by the Constitution.'"¹ *Ante*, at 137 (quoting 533 U. S., at 300). This statement affirms what the finality-era cases long suggested: that the Suspension Clause limits Congress' power to restrict judicial review in immigration cases. Nor did *St. Cyr* arrive at this conclusion simply based on canons of statutory construction. The Court spoke of deeper historical principles, affirming repeatedly that "[a]t its historical core, the writ of habeas corpus has served as a means of reviewing the legality of Executive detention, and it is in that context that its protections have been strongest." *Id.*, at 301; see also *id.*, at 305 ("The writ of habeas corpus has always been available to review the legality of Executive detention"). The Court looked to founding-era cases to establish that the scope of this guarantee extended to both the "interpretation" and "application" of governing law, including law that guided the exercise of executive discretion. *Id.*, at 302.

Based on that history, the Court also concluded that "a serious Suspension Clause issue would be presented" by precluding habeas review in the removal context, *id.*, at 305, even where there was "no dispute" that the Government had the legal authority to detain a noncitizen like *St. Cyr*, *id.*, at 303. Thus based on the same principles that the Court purports to apply in this case, the *St. Cyr* Court reached the opposite conclusion: The Suspension Clause likely prevents Congress from eliminating judicial review of discretionary executive action in the deportation context, even when the writ is used to challenge more than the fact of detention itself.

Boumediene reprised many of the rules articulated in *St. Cyr*. It first confirmed that the Suspension Clause ap-

plied to detainees held at Guantanamo Bay, repeating the “uncontroversial” proposition that “the privilege of habeas corpus entitles” an executive detainee to a “meaningful opportunity to demonstrate that he is being held pursuant to ‘the erroneous application or interpretation’ of relevant law.” 553 U. S., at 779 (quoting *St. Cyr*, 533 U. S., at 302). Then the Court detailed the writ’s remedial scope. It affirmed that one of the “easily identified attributes of any constitutionally adequate habeas corpus proceeding” is that “the habeas court must have the power to order the conditional release of an individual unlawfully detained.” 553 U. S., at 779. Notably, the Court explained that release “need not be the exclusive remedy,” reasoning that “common-law habeas corpus was, above all, an adaptable remedy” whose “precise application and scope changed depending upon the circumstances.” *Ibid.* (citing 3 W. Blackstone, Commentaries *131). The Court noted that any habeas remedy might be tempered based on the traditional test for procedural adequacy in the due process context and thus could accommodate the “rigor of any earlier proceedings.” 553 U. S., at 781 (citing *Mathews v. Eldridge*, 424 U. S. 319, 335 (1976)).

The Court discounts these cases because it objects to the perceived direction of respondent’s requested release. *Ante*, at 136–137 (explaining that *Boumediene* did not suggest that the enemy combatant petitioners were entitled to enter the United States upon release). It similarly contends that respondent’s attempted use of the writ is “very different” from that at issue in *St. Cyr*. *Ante*, at 138.

Neither rejoinder is sound. *St. Cyr* and *Boumediene* confirm that at minimum, the historic scope of the habeas power guaranteed judicial review of constitutional and legal challenges to executive action. They do not require release as an exclusive remedy, let alone a particular direction of release. Rather, both cases built on the legacy of the finality era where the Court, concerned about the constitutionality of limiting judicial review, unquestionably entertained habeas petitions from arriving migrants who raised the same types

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of questions respondent poses here. See, e. g., *St. Cyr*, 533 U. S., at 307 (citing *United States ex rel. Accardi v. Shaughnessy*, 347 U. S. 260 (1954) (habeas case attacking the denial of an application for suspension of deportation)); see also *id.*, at 268 (“[W]e object to the Board’s alleged failure to exercise its own discretion, contrary to existing valid regulations” (emphasis deleted)).

As discussed above, respondent requests review of immigration officials’ allegedly unlawful interpretation of governing asylum law, and seeks to test the constitutional adequacy of expedited removal procedures. As a remedy, he requests procedures affording a conditional release, but certainly did not so limit his prayer for relief. His constitutional and legal challenges fall within the heartland of what *St. Cyr* said the common-law writ encompassed, and *Boumediene* confirms he is entitled to additional procedures as a form of conditional habeas relief. These precedents themselves resolve this case.

The Court wrongly declares that § 1252(e)(2) can preclude habeas review of respondent’s constitutional and legal challenges to his asylum proceedings. So too the Court errs in concluding that Congress need not provide a substitute mechanism to supply that review. In so holding, the Court manages to flout precedents governing habeas jurisprudence from three separate eras. Each one shows that respondent is entitled to judicial review of his constitutional and legal claims. Because § 1252(e)(2) excludes his challenges from habeas proceedings, and because the Immigration and Nationality Act does not otherwise provide for meaningful judicial review of the Executive’s removal determination, respondent has no effective means of vindicating his right to habeas relief. Quite simply, the Constitution requires more.

III

Although the Court concludes that habeas relief is not available because of the particular kind of release that it

thinks respondent requests, it also suggests that respondent's unlawful status independently prohibits him from challenging the constitutionality of the expedited removal proceedings. By determining that respondent, a recent unlawful entrant who was apprehended close in time and place to his unauthorized border crossing, has no procedural due process rights to vindicate through his habeas challenge, the Court unnecessarily addresses a constitutional question in a manner contrary to the text of the Constitution and to our precedents.

The Court stretches to reach the issue whether a noncitizen like respondent is entitled to due process protections in relation to removal proceedings, which the court below mentioned only in a footnote and as an aside. See *ante*, at 138 (quoting 917 F. 3d, at 1111, n. 15). In so doing, the Court opines on a matter neither necessary to its holding nor seriously in dispute below.¹¹

The Court is no more correct on the merits. To be sure, our cases have long held that foreigners who had never come into the United States—those “on the threshold of initial entry”—are not entitled to any due process with respect to their admission. *Shaughnessy v. United States ex rel. Mezei*, 345 U. S. 206, 212 (1953) (citing *Ekiu*, 142 U. S., at 660); see also *Landon v. Plasencia*, 459 U. S. 21, 32 (1982). That follows from this Courts' holdings that the political branches of Government have “plenary” sovereign power over regulating the admission of noncitizens to the United States. *Ante*, at 139; see also *Ekiu*, 142 U. S., at 659.

¹¹ While the Court contends that the writ of habeas corpus does not allow an individual to “obtain administrative review” or additional procedures, it arrives at this conclusion only in the context of discussing what sorts of “relief” properly qualified as release from custody at common law. *Ante*, at 107, 119–121 (contrasting request for additional remedies with a “simple” release from custody). To the extent that this discussion necessarily prohibits federal courts from entertaining habeas petitions alleging due process violations in expedited removal proceedings, the Court's separate discussion in Part IV is unnecessary.